

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 202206270	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 09/07/2022 4:53 PM	Location of Incident: 222-14 Jamaica Avenue	18 Mo. SOL 3/7/2024	Precinct: 105		
Date/Time CV Reported Wed, 09/07/2022 7:21 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/20/2022 7:47 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Christopher Aylward	09539	938008	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Brandon Grasser	03461	955961	105 PCT
2. PO Joseph Arena	09544	951508	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Christopher Aylward	Abuse: Police Officer Christopher Aylward stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . PO Christopher Aylward	Force: Police Officer Christopher Aylward struck § 87(2)(b) with a vehicle.	B . Unfounded
C . PO Christopher Aylward	Discourtesy: Police Officer Christopher Aylward spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Christopher Aylward	Abuse: Police Officer Christopher Aylward searched § 87(2)(b)	D . Substantiated

Case Summary

On September 7, 2022, Sergeant Brandon Grasser of the 105th Precinct filed this complaint on behalf of § 87(2)(b) with the Internal Affairs Bureau via telephone, generating IAB log number § 87(2)(b). IAB referred this case to the CCRB, where it was received on February 8, 2023, under IAB log number § 87(2)(b) (Board Review 01).

On September 7, 2022, at approximately 4:53 p.m., § 87(2)(b) was riding an electric moped on Jamaica Avenue in Queens without a helmet, license, or license plate while using a cell phone when he saw Police Officer Christopher Aylward of the 105th Precinct in a marked police vehicle behind him with its turret lights on. § 87(2)(b) proceeded forward, and approximately one block later, in the vicinity of 222-14 Jamaica Avenue, the police vehicle allegedly struck the back of § 87(2)(b) moped, causing § 87(2)(b) to crash and fall to the ground (**Allegation A – Abuse of Authority: Vehicle Stop, substantiated; Allegation B – Force: Vehicle Strike, unfounded**). § 87(2)(b) said, “You’re fucking kidding me, you hit me over into the car,” and Police Officer Aylward responded, “Bullshit, I’m still in the lane” (**Allegation C – Discourtesy: Word, substantiated**). Police Officer Aylward picked up § 87(2)(b) wallet and removed his identification (**Allegation D – Abuse of Authority: Search of Person, substantiated**). Police Officer Aylward issued § 87(2)(b) four moving violation summonses (Board Review 02) and vouchered the moped and its keys (Board Review 03).

Body-worn camera (BWC) footage from Police Officer Aylward, Police Officer Joseph Arena, and Sergeant Brandon Grasser of the 105th Precinct is saved in IA#69 (Board Review 04). Police Officer Aylward’s BWC footage is summarized in IA#72 (Board Review 05). Surveillance footage from PS/IS 295 (222-14 Jamaica Avenue) is saved in IA#68 (Board Review 06). Surveillance footage from Food Universe supermarket (222-51 Jamaica Avenue) is saved in IA#114 (Board Review 07).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Aylward stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Force: Police Officer Christopher Aylward struck § 87(2)(b) with a vehicle.

§ 87(2)(b) was interviewed on October 17, 2022 (Board Review 08). Witness § 87(2)(b) provided a telephone statement on November 18, 2022 (Board Review 09). Police Officer Aylward was interviewed on December 2, 2022 (Board Review 10) and appeared for a follow-up interview on February 7, 2022 (Board Review 11).

It is undisputed that § 87(2)(b) was riding an electric moped without a helmet, license, or license plate while using a cell phone, and that he continued riding his moped after he saw Police Officer Aylward in a marked police vehicle behind him with its turret lights on.

§ 87(2)(b) stated that he proceeded forward after seeing Police Officer Aylward behind him because he sees turret lights on “all the time” and he believed he did nothing wrong. § 87(2)(b) continued riding for approximately one block, and then, “out of nowhere,” when he reached the rear bumper of a Honda Pilot parked at the curb, Police Officer Aylward “rammed” his front bumper into the rear of § 87(2)(b) scooter from directly behind. § 87(2)(b) noticed the police vehicle “for a split second” before the impact, and he “had no idea [Police Officer Aylward] was pursuing [him] prior to him hitting [him].” Police Officer Aylward did not drive beside § 87(2)(b) tell him to pull over, activate the sirens or horn, or speak over the loudspeaker. § 87(2)(b) went “face-first

flying into” the passenger-side mirror of the Honda, folding it forward. § 87(2)(b) then fell into the street and landed on his right side/shoulder. § 87(2)(b) sustained a laceration to his eyebrow/forehead that ultimately required stitches, swelling to his eye, and body aches. An ambulance later arrived at the scene, but § 87(2)(b) refused medical attention.

§ 87(2)(b) stated that he was driving behind § 87(2)(b) and Police Officer Aylward when he saw Police Officer Aylward pull the police vehicle alongside § 87(2)(b) and they travelled parallel to each other for approximately half a block at a speed under 30 miles per hour. As § 87(2)(b) and Police Officer Aylward approached the end of the block, Police Officer Aylward “jerked the wheel and intentionally knocked § 87(2)(b) off the bike.” The police vehicle went into § 87(2)(b) path, and § 87(2)(b) moped hit the police vehicle. § 87(2)(b) was unsure whether § 87(2)(b) hit the front bumper or the side of the police vehicle. § 87(2)(b) then hit the parked Honda and bounced back toward the police vehicle. § 87(2)(b) pulled over because he was concerned Police Officer Aylward may have run over § 87(2)(b) and he gave § 87(2)(b) his telephone number.

The surveillance footage from PS/IS 295 (Board Review 06; slow-motion: Board Review 12) shows § 87(2)(b) riding his moped on a white line that separates a lane of parked cars from the rightmost lane of vehicular traffic. Police Officer Aylward’s police vehicle is behind § 87(2)(b) with its turret lights on. Once § 87(2)(b) is approximately one car length from the parked Honda at the corner of the frame, Police Officer Aylward’s police vehicle pulls directly alongside § 87(2)(b) moped, and they appear to be separated by less than one arm’s length. § 87(2)(b) and Police Officer Aylward then go behind the Honda and out of the frame. The collision is not visible in this video.

The surveillance footage from Food Universe supermarket (Board Review 07; slow-motion: Board Review 13) also shows Police Officer Aylward’s police vehicle pulling alongside § 87(2)(b) as he approaches the Honda. When § 87(2)(b) reaches the rear bumper of the Honda, he accelerates through a narrow gap between the Honda and Police Officer Aylward’s police vehicle. As he accelerates through the gap and past the police vehicle, he strikes the police vehicle’s passenger-side mirror, and then strikes the Honda’s driver-side mirror. § 87(2)(b) and his moped then fall to the ground, and the police vehicle stops immediately behind § 87(2)(b). There are no vehicles adjacent to the police vehicle in the left lane of Jamaica Avenue.

In Police Officer Aylward’s BWC footage (Board Review 14), at runtime 00:42, Police Officer Aylward unholsters the loudspeaker mouthpiece and presses a button on its side, but he does not raise it to his lips or appear to speak into it. The collision is not visible in this footage. At 00:52, Police Officer Aylward turns the steering wheel slightly to the right and straightens it out, and then the police vehicle stops. Police Officer Aylward exits the police vehicle, and then at 01:05, the police vehicle’s passenger-side wheels are seen on top of the solid white line. § 87(2)(b) is on the ground and bleeding from his forehead. The gap between the police vehicle and the parked Honda is visible, and it appears to be approximately half the width of the Honda. The Honda’s driver door is dented, and its driver-side mirror is folded forward. The police vehicle’s passenger-side mirror is also folded forward.

A Threat, Resistance, and Injury Worksheet prepared for this incident (Board Review 15) states that Police Officer Aylward activated his lights and sirens, and § 87(2)(b) refused to pull over, so Police Officer Aylward pulled alongside § 87(2)(b) to tell him to pull over. § 87(2)(b) then lost control of his moped and struck the parked Honda Pilot, and then struck the police vehicle.

Police Officer Aylward stated that after he followed § 87(2)(b) for approximately three blocks, he noticed an “opening” in the road where there were no parked cars, except for a car parked at the end

of the block. As § 87(2)(b) was riding along the solid white line on the shoulder, Police Officer Aylward attempted to pull up alongside § 87(2)(b) to tell him to pull over because the police vehicle's loudspeaker was broken. Police Officer Aylward drove straight forward when he pulled alongside § 87(2)(b) at which point his police vehicle and § 87(2)(b) moped were separated by approximately two feet. § 87(2)(b) "tried to squeeze between" Police Officer Aylward's vehicle and the Honda Pilot parked at the curb approximately four feet to the right of the police vehicle. § 87(2)(b) struck the police vehicle and flew over his handlebars. § 87(2)(b) head struck the passenger side mirror of the police vehicle, folding it forward. § 87(2)(b) also collided with the Honda's rear taillight and driver door. Police Officer Aylward heard "a bang" and immediately stopped the police vehicle. Police Officer Aylward did not have a chance to verbally tell § 87(2)(b) to stop before the collision.

When asked whether he was aware of the parked Honda before the collision, Police Officer Aylward stated, "I'm sure, I had to be [aware of the Honda]. I was driving straight ahead, it was right there. I mean, I had to know that the car was there and wasn't moving, but it was never my intention to hit him into it, direct him into it, or anything like that." Police Officer Aylward did not recall the exact moment when he first noticed the Honda, and he did not factor the Honda into his decision to stop § 87(2)(b). Police Officer Aylward stated that he did not lose sight of § 87(2)(b) while driving his police vehicle, but at the moment of the collision, he was looking straight ahead. Police Officer Aylward did not move over into the empty left lane because he was not looking to his left and did not want to hit any vehicles. Police Officer Aylward noted, "I thought there was enough room on the right that I didn't need to [switch lanes]." Police Officer Aylward believed the moment he is seen on BWC turning the steering wheel to the right was immediately after the collision, and he denied turning to the right before the collision. Police Officer Aylward was familiar with prohibited tactics for stopping a motor vehicle, as per the Patrol Guide. When asked which of these tactics he was familiar with, Police Officer Aylward said officers should not pull in front of a motorist being pursued, or box a pursued vehicle in. Police Officer Aylward was not familiar with a provision that says officers should generally avoid pulling up alongside a motor vehicle. Police Officer Aylward stated, "My intention was never to hit him into this car or hit him at all." He did not intend to use the parked Honda to stop § 87(2)(b).

Patrol Guide Procedure 221-15 (Board Review 16) identifies driving alongside a pursued vehicle and placing a moving police vehicle in a position to be struck by a pursued vehicle, as tactics that are generally prohibited and should not be used in an attempt to stop a motor vehicle. It cites a vehicle ramming attack as an example of an exigent or exceptional circumstance where such tactics may be justified, and it indicates that officers may use deadly physical force to terminate a mass casualty event.

The collision involving § 87(2)(b) moped occurred after § 87(2)(b) noticed Police Officer Aylward's police vehicle with its turret lights § 87(2)(g). Police Officer Aylward is seen on BWC unholstering the loudspeaker's mouthpiece, § 87(2)(g).

§ 87(2)(b) When he pulled alongside § 87(2)(b) he was immediately (approximately two feet, or less than one arm's length) to § 87(2)(b) left, and the Honda was approximately one car length ahead of them. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **substantiated**.

As evidenced in the footage from Food Universe supermarket, Police Officer Aylward did not strike the rear of § 87(2)(b) scooter with his police vehicle, as alleged by § 87(2)(b). It is therefore recommended that **Allegation B** be **unfounded**.

Allegation (C) Discourtesy: Police Officer Christopher Aylward spoke discourteously to § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Christopher Aylward searched § 87(2)(b).

It is undisputed that § 87(2)(b) wallet fell to the ground in the crash, and that Police Officer Aylward picked up the wallet and removed § 87(2)(b) identification.

§ 87(2)(b) stated that immediately after the crash, Police Officer Aylward picked up § 87(2)(b) wallet and keys from the ground, removed the bicycle key from the keychain, and started taking photographs. Police Officer Aylward opened § 87(2)(b) wallet, started “looking through it to see what he could find,” and removed his ID. § 87(2)(b) was carrying his ID, food stamp card, debit card, and a few \$1 bills in his wallet. § 87(2)(b) carried his ID in the clear/windowed pocket of the wallet. Police Officer Aylward did not ask § 87(2)(b) for his ID before he took it from the wallet. § 87(2)(b) felt that this was an invasion of his privacy. § 87(2)(b) did not allege Police Officer Aylward used any profanities toward him.

§ 87(2)(b) stated that after he parked his car and approached the scene, § 87(2)(b) were “exchanging statements” and “kind of arguing.” He did not mention Police Officer Aylward using profanities toward § 87(2)(b) or searching § 87(2)(b) wallet.

In Police Officer Aylward’s BWC footage (Board Review 14), once the audio begins at runtime 01:00, § 87(2)(b) and Police Officer Aylward argue about whether Police Officer Aylward struck § 87(2)(b) with the police vehicle. § 87(2)(b) is visibly upset and uses numerous profanities toward Police Officer Aylward, but he does not attempt to flee the scene and is otherwise cooperative with the investigation. At runtime 02:17, § 87(2)(b) says, “You’re fucking kidding me, you hit me over into the car,” and Police Officer Aylward responds, “Bullshit, I’m still in my lane.” At 03:00, Police Officer Aylward holds and looks through a wallet, and then tosses it onto the hood of his police vehicle. At 03:12, § 87(2)(b) says, “Where the hell is my phone?” At runtime 06:50, Police Officer Aylward holds up § 87(2)(b) license and says, “I have your license.”

The Threat, Resistance, and Injury Report (Board Review 15) contains photographs of § 87(2)(b) injuries and the damage to the parked Honda.

Police Officer Aylward acknowledged that he “probably” stated, “Bullshit, I’m still in my lane.” He said this because § 87(2)(b) had falsely accused him of hitting him with the police vehicle. He denied removing anything from § 87(2)(b) wallet other than his identification. He removed the identification himself rather than first handing the wallet to § 87(2)(b) because he needed to complete § 87(2)(b) summons, and § 87(2)(b) was “stomping around” looking for his cell phone, which had fallen from his person during the crash.

The NYPD is committed to “treating every citizen with compassion, courtesy, professionalism, and respect.” Patrol Guide Procedure 200-02 (Board Review 17).

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. PD v. Pichardo, DAO DCT Case Number 2015-15012 (Board Review 18).

Although § 87(2)(b) had refused to pull over his moped and used profanities toward Police Officer Aylward while arguing with him, when Police Officer Aylward said, “Bullshit, I’m still in my lane,” § 87(2)(b) had already crashed and had stopped fleeing. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation C** be **substantiated**.

According to People v. Graham, 211 A.D.2d 55 (1995) (Board Review 19), an officer may search an individual’s personal effects if the officer has probable cause that they contain contraband or evidence of a crime. Graham defines probable cause as the body of information available to an officer “which would lead a reasonable person who possesses the same expertise as the officer to conclude, under the circumstances, that a crime is being or was committed.”

Police Officer Aylward searched § 87(2)(b) wallet to find his identification so he could issue him summonses, and because § 87(2)(b) was busy looking for his cell phone. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- Police Officer Christopher Aylward has been a member of service for 17 years and has been a subject in three other CCRB complaints and 12 other allegations, of which one was substantiated.
 - 201701614 involved a substantiated allegation of Physical Force. The Board recommended Formalized Training, and the NYPD took no disciplinary action.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 13, 2022, over 90 days after the incident occurred, the New York City Office of the Comptroller had no record of a Notice of Claim being regarding this incident (Board Review 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 02

Investigator:	<u>JP Lozada</u>	<u>SI Jean-Paul Lozada</u>	<u>02/10/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>2/10/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date